NHS
Worcestershire
Health and Care
NHS Trust

Transgender Staff - Guidelines

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Guideline / Policy on a Page – Summary of Key Points

For many people their innate sense of being their gender matches their birth sex and they do not have any questions over their gender identity, this is not the case for everyone.

Transgender or 'Trans' is a term for a person whose gender is different from that assigned at birth, each trans person's experience is unique and there are few absolutes. It is for this reason that this document is written as 'guidelines' and not a policy.

Transsexual (disliked by some trans people) is a medical term for a person who permanently changes their gender, although the law does not require a person to undergo medical procedures to be recognised as a trans person.

The Trust seeks to ensure that no trans person is treated less favourably than any other member staff and the individual's right to self-identify their gender is respected.

These guidelines relate to the current and future recruitment, selection and retention of trans staff, including, volunteers, bank/agency/locum staff, honorary contracts and independent contractor to the Trust.

It is unlawful to discriminate against a trans person, this includes direct, indirect, perceptive and associative discrimination and is afforded protection under legislation including the Equality Act 2010. To do so can result in prosecution in court and/or disciplinary action leading to termination of employment.

These guidelines set out:

- The responsibilities and duties of employees in the Trust
- The recruitment and section process including recording and maintaining records
- Supporting existing staff who are transitioning, including developing a joint plan, or have transitioned
- Where relocation or redeployment **may** be appropriate and where it is not
- Communicating with work colleagues and working with the trans person
- Records, systems, dress code and the use of single sex facilities (eg toilets, showers and changing facilities)

Key principles:

- A sensitive and appropriate response is required
- All members of staff should refer to the trans person by their preferred name and use pronouns appropriate to their gender identity or the trans persons preferred pronouns
- Revealing that someone is trans could place them at risk of discrimination and violate their right to privacy. It is never appropriate to disclose a person is trans to colleagues, clients /patients and the pubic unless with the explicit consent and permission of the trans person

Transgender Staff - Guidelines

Document Type	Guidance
Unique Identifier	To be set by Web and Systems Development Team
Document Purpose	Guidance to Managers and Staff on the Recruitment and Selection, employment and retention of Staff who are considering undergoing, have undergone, or are in the process of undergoing gender reassignment (collectively referred to as Transgender)
Document Author	Patrick McCloskey
Target Audience	Trust Board Members, Strategic and Operational Managers, Senior Management Teams, Recruitment team and panel members, Human Resources Team, Staff Side and Staff
Responsible Group	Inclusion Steering Group
Date Ratified	
Expiry Date	

The validity of this policy is only assured when viewed via the Worcestershire Health and Care NHS Trust website (hacw.nhs.uk.). If this document is printed into hard copy or saved to another location, its validity must be checked against the unique identifier number on the internet version. The internet version is the definitive version.

If you would like this document in other languages or formats (i.e. large print), please contact the Communications Team on 01905 681770 or by email to WHCNHS.Communications@nhs.net

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Version History

Version	Circulation Date	Job Title of Person/Name of Group circulated to	Brief Summary of Change
v.1	3rd July 2018	OD & Inclusion Facilitator	Repetition especially, confidentiality, breach of data and implications. Either take out or contain in one or two areas. Spelling, grammar, order and structure – connecting words or context Some paragraphs better in other sections for consistency and continuity Create a Flow Chart for – developing a joint action plan for managing the transition at work. Too detailed in parts – take out or make reference to where it can be found.
v.2	10th July Response by 30th July		10th July **Deputy Director of Nursing** - Adjustment to spelling and punctuation. Recommendation to include DBS procedures in summary document. **Associate Director of Workforce** - Definitions need to be earlier in the document. Trans/Transsexual/Transgender – again can you have a more consistent reference to one 'name' rather than jumping between the 3. (by putting the definition earlier it means the guidelines can use trans for both transsexual and transgender and only use transsexual or transgender where there is a distinction to be made – Inclusion Practitioner) Correct names for HR policies and counselling service Spelling and grammar

DRAFT

			Remove some 'phrases' that are not appropriate/friendly. 12th July **Head of Stakeholder Engagement and Patient Involvement** - There needs to be a further sentence at the end of first paragraph of the introduction. Something along the lines that 'For these people, there may be the need to live as the opposite sex to their birth sex, or to undergo gender reassignment'(by putting the definition before the introduction this I think means that no further explanation is needed but takes on board the point made and responds to the feedback) 13th July **Head of Organisational Development** - As the document is a draft use a 'watermark' with draft so that it is evidence that the guidelines have not been approved. Wording, spelling, grammar and spacing, full wording for abbreviations Research NHS Jobs intention to expand options for Gender Identity When making reference to 'dress code' include hair, jewellery, make-up etc. **Deputy Director of Nursing** - Section B1 – is there a role for OH here? As we would with any member of staff Section B5 and section 9 – do you need to reference the polices or having them at the end suffices?
v.3	25th July	**Person with lived experience**	Is this needed if you join NHS after transitioning socially/ medically or at least obtaining a legal deed poll? – Have amended this (section 7.c) Section 8a. The expected point, or phase, of change of name, personal details and social gender instead social transition.

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			8.b.2 'preferred name' rather than 'new name' – have changed this. Managers should try to offer flexibility to individuals who may need to take holiday or rearrange working hours to attend additional appointments (for instance for Gender Identity Clinic appointments [rather than electrolysis]) outside of work 8.b.6 - The trans person should be free to select the facilities appropriate to the gender in which they present. For example, when a trans person starts to live in their acquired gender role on a full-time basis they should be afforded the right to use the facilities appropriate to the acquired gender role. Employers should avoid discriminating against anyone with the protected characteristic of 'gender reassignment'. Feedback in response to the above is: It is also not illegal to use your preferred toilet. Therefore, the Trans person has every right to use the preferred toilet in regard to their identity. If the person is Non-binary it would be for them to use the toilet facility appropriate to them. The reasoning is that the Trust also has to consider the impact of all staff. Therefore, a person who identifies as non-binary using what toilet that they identify with but using either toilet may be appropriate for the non-binary person but may not be comfortable to staff. Whereas a person who is trans is using a toilet that is appropriate for the gender they identify with and apply this to either male or female toilets but not alternating between them.

DRAFT

			Transition Definition add (Socially and/or medically)
v.4	4th December 2018	**Engagement Meeting – people form the trans community who are at various stages of transitioning**.	Non-binary Definition advise that the pronouns are they/them rather than s/he or him/her Ask the person their preferred pronouns rather than make stereotypical assumptions Gender-Reassignment – for hormone treatment or surgery have changed to and/or 3rd Gender Definition removed – and made reference to non-binary Where Gender variant has been used have change to Gender Fluid Include a definition of Gender Variant and Gender fluid. In Appendix 1 Under Definitions "Trans" is an umbrella term for categories of sex and/or gender…. Asexual and Pansexual are sexual preferences not Genders. These have been removed Make reference to 'retention' of staff as part of the document purpose and purpose of guidelines Equal Opportunities Form: NHS Jobs - The only options relating to Gender are, Male or Female, there is currently no option for any other gender identity. The later part of this has been reworded. Originally said 'no option for trans' but this is still restrictive. Having transitioned from male to female the individual is unlikely to describe them self as trans female. Changes to terminology eg transsexual to trans. Changes to wording more sensitive and appropriate with some aspect of future proofing the guidelines. Being more consistent eg

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			transitioning from 'female to a man' changed to 'from female to male'. Applying affirmed gender rather than acquired gender. Move some paragraphs around – no changes to the paragraphs but sit better under different sections. Redundant words/phrases eg 'regardless of whether their transition is continuous or temporary'
v.5	15th January	**Engagement Meeting – people form the trans community who are at various stages of transitioning.**	The word 'Transsexual' has been changed to 'Trans'. 'New gender' changed to affirmed gender or acquired gender. Streamlining areas of employment to highlight HR practices are related to all form of employment and not specifically to trans employees eg sickness leave, harassment and bullying Change of name can be achieved by Statutory Declaration as well as Deed Poll. Change of gender now, changed to gender role. Re-word 8. b6 - Facilities (eg toilets, showers, changing rooms etc) greater emphasis on not imposing the facilities a trans person but rather allowing the individual to decide on what facilities appropriate to their gender identity – balancing other staff concerns but remembering the legal rights of the trans person. Clear definition of 'employee' and third party responsibility. Why guidelines are appropriate rather than a policy Use the word gender rather than sex.

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			Definition – some removed eg 'third gender'. Adopt definitions by Stonewall where possible –give a reference for the definition where possible. Include Cisgender and definition. Non-binary a definition provided by the group. Appendix 2 – useful sources include the NHS and NHS Choices.
v.6	25th January 2019 12th February 2nd April	**Associate Director of HR**	Specific wording regarding a Trans person requesting or needing redeployment that is congruent with Trusts' current and future policy/guidance to ensure a Trans person will be supported and managed in the same way as any other member of staff.
	10th April 2019	**LGBT+ Staff Network**	Typo on: page 2, 2nd paragraph - "Form many" 4th paragraph – "there a few absolutes". 4th paragraph – "less favourably than any other member staff" 5th paragraph – "and is afford protection under legislation" key principles – "constitute 'sensitive date' page 17, section 8 – "The manger must be aware of the impact of on the person not only in their.." page 18 – section 8a – "Respect the employees'" - the apostrophe is in wrong place. page 24 – section 10c – "Treating a person gender history" – missing 's recommend changing this to "use pronouns appropriate to their gender identity or the trans persons preferred pronouns".
	11th April 2019	**LGBT+ Staff Network**	Introduction section – some of the sentences don't read "right" with some

DRAFT

			spelling errors making sentences wrong (e.g. “and is afford protection”) In Appendix One – the definition of Transitioning appears twice with different meanings (on both pages 29 and 30) Does mention somewhere need to be made about the possibility of having to legally report this (in the same way as WRES) as a protected characteristic going forward? In the appendix under Sexual Orientation you list some but not all the sexualities that people may identify as – could wording change to say may identify as ANY sexuality rather than listing some?
v.7		**Head of Quality Governance**	Spelling and grammar corrections. Simplified text and the removal of duplicated information.
		Senior HR Manager	Summary sheet is disjointed – the flow of the context reordered.

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Accessibility

Interpreting and Translation services are provided for Worcestershire Health and Care NHS Trust including:

- Face to face interpreting;
- Instant telephone interpreting;
- Document translation; and
- British Sign Language interpreting.

Please refer to the intranet page: http://nww.hacw.nhs.uk/a-z/services/interpreting-and-translation-services/ for full details of the service, how to book and associated costs.

Training and Development

Worcestershire Health and Care NHS Trust recognises the importance of ensuring that its workforce has every opportunity to access relevant training. The Trust is committed to the provision of training and development opportunities that are in support of service needs and meet responsibilities for the provision of mandatory and statutory training.

All staff employed by the Trust are required to attend the mandatory and statutory training that is relevant to their role and to ensure they meet their own continuous professional development.

Co-production of Health and Care – Statement of Intent

The Trust expects that all healthcare professionals will provide clinical care in line with best practice. In offering and delivering that care, healthcare professionals are expected to respect the individual needs, views and wishes of the patients they care for, and recognise and work with the essential knowledge that patients bring. It is expected that they will work in partnership with patients, agreeing a plan of care that utilises the abilities and resources of patients and that builds upon these strengths. It is important that patients are offered information on the treatment options being proposed in a way that suits their individual needs, and that the health care professional acts as a facilitator to empower patients to make decisions and choices that are right for themselves. It is also important that the healthcare professional recognises and utilises the resources available through colleagues and other organisations that can support patient health.

DRAFT

Contents: **Page Number:**

1		**Definitions**		**12**
2		**Introduction**		**12-13**
3		**Purpose of Guidance**		**13**
4		**Scope**		**13-14**
5		**Trust Statement**		**14**
6		**Responsibilities and Duties – The Role of…**		**14-15**
	6a	The Board		14
	6b	Senior Managers		14
	6c	Managers		14
	6d	Inclusion Practitioner		14
	6e	All Staff		14
7		**Appointment and Employment of Trans Staff**		**15-17**
	7a	References and Certificates of Qualification		15
	7b	DBS Procedure		16
	7c	Payroll/HR Records		16
	7d	Recruitment Compliance		17
	7e	General Data Protection Regulations (GDPR)		17
8		**Managing Trans Staff**		**17-22**
	8a	Developing a Joint Plan for Managing the Transition at Work		17-18
	8b	Practical Considerations and Functions		18
		b1	Relocation, remaining at same location or redeployment	*19*
		b2	Communication with Colleagues	*19-20*
		b3	Expected Timescales and Time Off for Medical and Surgery Procedures	*20-21*
		b4	Records and Systems	*21*
		b5	Agreeing a procedure for adhering to Dress Code	*21*
		b6	Agreeing the Point at which the Individual Will Commence Using Single Sex Facilities in their New Gender	*21-22*
		b7	Identifying what Managers and Colleagues Can Do to Make the Transition	*22*
9		**Bullying**		**23**
10		**Legal Framework**		**23-25**
	10a	The Equality Act 2010		23
	10b	The Public Sector Equality Group		23
	10c	The Gender Recognition Act (GRA) 2004		23
	10d	Exceptions		24
	10e	Other legislation		25
11		**Monitoring and Implementation**		**25**
12		**Associated Documentation**		**26**

		Appendances	
	1	**Definitions and Commonly Used Terms Regarding Trans People**	**27-31**

DRAFT

	2	Useful Resources of Information and Advice	32-33

		Equality Impact Analysis	34-36

1 **Definitions**

For this document the two main groups covered are Transgender and Transsexual individuals.

Transgender is an umbrella term for people whose gender is different from that "assigned" at birth/that recorded on their birth certificate. Gender can refer to one's own, internal sense of being a man or woman, or another type that doesn't fit either category. Gender can also be expressed externally - through clothing, behaviour and body characteristics. Transgender can be shortened to "trans". “Trans” is an umbrella term for categories of sex and/or gender and can include Transsexual, Transgender, Transvestite, Non-binary, Genderqueer, Androgyne and Bigender individuals.

Transsexual is a term used by some people who permanently change their bodies, usually, but not always, using hormones or surgery, for example, a person assigned female at birth who has transitioned or transitioning to live as a male and vice versa. Some people who go through this process - known as "transition" - prefer to be known simply as transgender, rather than transsexual. **The law does not require a person to undergo a medical procedure to be recognised as a transsexual person**. This term is most closely associated with the protected characteristic of ‘gender reassignment’

See Appendix 1 - Definitions and commonly used terms regarding trans people

2 **Introduction**

There is no universal experience of being trans, The Trust (all employees) must be ready to respond to individual needs and create a culture where people feel supported, working with the trans person to identify and agree how best to provide this support.

For many people their innate sense of being their gender matches their birth sex and they do not have any questions over their gender identity. For some people, their gender identity does not match the gender they were assigned at birth.

The Trust seeks to ensure that no trans person will be treated less favourably on the grounds that they intend to undergo gender reassignment, are in the process of undergoing gender reassignment, or have at some time in the past undergone gender reassignment. The Trust respects an individual’s rights to self-identify their gender and commits to recognising all employees of the Trust as the gender in which they choose to present.

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It is in the Trust's interest to secure the best possible applicants in order to deliver the highest standards of healthcare to the diverse population we serve and support and retain employees who are currently working in our Trust.

It is unlawful to discriminate against an employee, job applicant or contractor on the grounds of that person's gender reassignment. Discrimination in this context means treating a trans person less favourably than you treat (or would treat) another employee who is not undergoing gender reassignment.

3 Purpose of Guidance

This guidance is designed to provide advice on the recruitment and selection, on-going employment and retention of trans applicants/staff, who are intending to undergo, undergoing or completed gender reassignment.

The aim of the guidance is to:

- eliminate any actual or potential barriers for trans people
- attract applications from suitably qualified trans job seekers;
- ensure that the recruitment process does not present barriers to trans applicants
- ensure that recruiting managers respond to and assess trans candidates fairly and appropriately
- provide an environment that will support current members of staff who are trans to continue to be employees of the Trust and be recognised and respected for the gender they identify with

These guidelines apply specifically to people who have the protected characteristic of gender reassignment, as defined by the Equality Act 2010, and equivalent protection will be afforded under the policy to those with other gender identities.

4 Scope

These guidelines are for current and future employees (also referred to as employees, workforce) and apply from the initial stages of recruitment and selection through to the time the employee leaves the Trust and covers all that happens within this time, eg development, promotion and so on.

These guidelines apply to all employees (both full-time and part-time) and volunteers working within the Trust which includes those who are within a Bank/Locum system or via an Agency. This Policy also extends to those who may hold an Honorary Contract with the Trust, students/trainees or are independent contractors to the Trust.

This is a not a definitive guide, legislation, terminology, social rules/norms and other factors means that the contents of this guidance will be continually evolving, hence why it is a guide and not a policy.

5 Trust Statement

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The Trusts and its employees have a responsibility to ensure that trans people are welcomed and respected and that our policies and practices operate in ways that do not discriminate against trans staff. The scope of our collective responsibility includes ensuring that:

- employment practices support trans staff and that they are treated with dignity and respect
- information governance and health records protocols are in place to facilitate an individual's choice to change their name and gender at any time
- wards, departments and services are supported to ensure they are able to comply with legal requirements contained in the Equality Act 2010 in respect of the Transgender protected characteristic and Gender Recognition Act 2004, as well as duties contained in the Data Protection Act 1998. Gender Recognition Act

6 Responsibilities and Duties

6.a **The Board** has a responsibility to develop a culture and climate in which employees can excel at work and maximise their potential regardless of their trans status and where staff and service users receive a fair and equal service. Through the Workforce Committee the Board will oversee the introduction, operation and monitoring of these guidelines.

6.b **Senior Managers** - to ensure that relevant departmental managers receive a copy of this policy for onward communications to staff.

6.c **Managers** - have the responsibility to:

- cascade this information to the staff they manage.
- ensure that systems are in place to enable all staff including agency staff, contractors and volunteers to have access to guidelines and remain up to date with the content.
- ensure that harassment and bullying does not occur and is not tolerated. This includes acting as a role model in terms of appropriate behaviour.

6.d **Inclusion Practitioner** is responsible for providing appropriate advice and guidance to all staff on the use of the guidelines.

6.e **All staff** - must ensure that they have a respectful and flexible approach towards people who are considering, undergoing or have undergone gender reassignment. This principle extends to all trans people.

All Trust staff play a key role in ensuring that all the information that the Trust processes, both personal and non-personal is:

- held securely and confidentially
- obtained fairly and efficiently
- recorded accurately and reliably
- used effectively and ethically
- shared appropriately and lawfully

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Each member of staff has a personal responsibility for their own

- physical and mental - health, wellbeing and safety, both to themselves and those they come into contact with.
- behaviour and must treat their colleagues, patients, volunteers, contractors and visitors with respect and fairness

These principles apply to all staff regardless of their gender identity/status.

7 Appointment and Employment of Trans Staff

A sensitive and appropriate response is required about the employment of trans people and the management of trans staff undergoing gender reassignment.

Protection applies from the moment at which the person indicates their intention to start the reassignment process and covers recruitment, transfer, training and promotion, access to work-related benefits, facilities and services and any other associated detriment. It is also unlawful for an employer to instruct someone else to do something discriminatory – for instance, telling an employment agency not to hire a trans person.

Protection also applies to those who are *perceived* to have the protected characteristic of gender reassignment. These individuals may encounter discrimination, bullying and/or harassment without their having any intention of gender reassignment.

7.a References and Certificates of Qualifications

When a reference for a trans person is requested it should be written in the name the trans person requests. If the person is transitioning from male to female but the referee knows them by their birth name, with the consent of the trans person, the reference should be written with the birth name, without any hint or reference to the fact that the person is changing or had a change of gender. When it comes to storing references (as evidence of professional status or qualification for example) this should be discussed with the trans person how to retain such evidence on file – if, for example, certificates are in the individual's birth name – so as not to compromise or breach the disclosure of protected information.

It should be noted that Trust reference requests are gender neutral, using the words, 'person', 'candidate', 'they', Gender pronouns are and should be avoided eg 'he/she', 'him/her'.

7.b Disclosure and Barring Services (DBS) Procedure

There is a specific DBS process for trans people which can avoid difficulties trans people may face when complying with the requirement to make truthful statements and revealing their gender history. The DBS has a dedicated number for trans people to ring which is 0151 676 1452 or email sensitive@dbs.gsi.gov.uk

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Disclosures sent to the employee and their employer will not reveal the applicant's former identity unless they have an offence or caution that is not 'protected' (as defined by the Rehabilitation of Offenders Act 1974 (Exceptions) Order 1975 (as amended in 2013)) and which has been recorded in that name in police records. If this happens the Police National Database (PNC) will automatically print these off in the old name under the new name and gender on the form. In this instance the DBS office (if they have been contacted prior to the DBS submission via the contact details above) will stop the process and get in touch with the trans person, allowing them time to change their details on the PNC. They will then issue the certificate with all names the same.

7.c Payroll/HR Records

All offers of employment involve identity and documentation checks. Sometimes, the names on the trans person's documents (such as passport, driver's licence, utility bills or qualifications certificates) do not match. A member of the Recruitment Team will work with the trans person and retain only what is needed, ensuring that the data is held securely.

Suitable evidence to account for the transition and name change should be presented to the Human Resources Manager for their work area including any of the following: A Name Change Deed or Deed Poll (eg Statutory Declaration); Driving license, Passport.

On receiving this information, the Trust will ensure that all documents, public references (such as telephone directories, prospectuses, web biographies) and employment details reflect the acquired gender of the person. This will prevent any breach of confidentiality. Where documents have been seen and copies taken at the point of starting employment (such as a birth certificate) every effort should be made to replace those with equivalent documents in the correct name and gender when they become available. **It is the responsibility of the employee to provide new versions of documentation**.

To maintain confidentiality, where possible new records should be produced; for instance, the cover of a personnel file should be replaced and updated name included rather than the old file have the previous name crossed out and replaced. It should be noted that once a person has obtained a Gender Recognition Certificate it is the responsibility of that person to provide updated documentation e.g. qualification certificates and the Trust's responsibility to remove documents in the previous name with documents in the updated name.

7.d Recruitment Compliance

Former Names: NHS Jobs does not require applicants to state former names.

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Equal Opportunities Form: NHS Jobs has a drop down box where there are currently two gender options, Male or Female, there is currently no option for any other gender identity, this does not reflect the changing reality of society.

Proof of Identify: NHS identity verification documentation is varied and should provide enough scope for trans applicants to provide documentation in their acquired gender.

7.e General Data Protection Regulation (GDPR)

For the purposes of the GDPR, gender reassignment and any information appertaining to an individual's gender history would constitute 'sensitive data' which can only be processed for certain specified reasons, as set out in the Act.

8 Managing the Transition at Work

The process of transition should be supported sensitively, working with the trans person, adopting the best approach in the workplace where the transition can have significant impact both upon the individual and upon colleagues. The manger must be aware of the impact on the person, not only in their professional life but their personal life as well. This can be a stressful time. The following section describes stages in the process, the considerations and actions expected of the manager, who can at any time seek advice and support from the Inclusion Practitioner and/or HR.

8.a Developing a Joint Plan for Managing the Transition at Work

Once the trans member of staff has indicated their intention to start the reassignment process a trusting and open relationship between the trans employee and the manager (and others such a HR and the Inclusion Practitioner) is really important. This should involve joint working, confidentiality, reliability (doing what you say you are going to do) and empathy (providing support). There should be an initial meeting between the trans person, the manager and HR Manager. The employee should be given the opportunity to arrange to be accompanied, should they wish, by a trade union representative or work colleague.

The purpose of the initial meeting and subsequent meetings would be to:

- Listen, give support, discuss levels of confidentiality, agree to seek advice and agree to work in partnership. The process should be led by the individual as much as possible.
- Take advice from the HR and/or the Inclusion Practitioner.
- Understand that individuals could have a range of experiences or objectives. Some people prefer as few people as possible to know about their transition and decide to discuss this with their manager but require no further action. Others may be planning a medical intervention and others

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may prefer transition that does not involve any medical intervention or surgery. The key thing is that managers need to adopt an approach that meets the needs of the employee.

- Agree with the member of staff what steps need to be taken before, during and after their transition. Some people refer to this as developing an agreement or an action plan.
- A series of review meetings should be scheduled, at an agreed frequency as part of any action plan, and at any significant stage of the process (fortnightly/monthly).
- The plan should be updated and developed.
- There should be an agreement about where the plan or any meeting notes are kept and who has access.
- The expected point, or phase, of change of name, personal details and social transition.
- Confirming who the trans person wants as their main point of contact within the organisation. This will typically be their line manager.
- Respect the employee's wishes of what they want to share with their colleagues, if anything. If they do want to inform their colleagues themselves, or would they prefer this to be done for them and agree what can be shared.
- Where possible, the expected timescale and time for any medical and surgical procedures – this may not be known for some time
- Agreeing a dress code
- Agreeing the point at which the individual will commence using the preferred single sex facilities (such as toilets and changing areas).
- What amendments will need to be made to records and systems, for example, e-mail addresses being changed without loss of data from the old e-mail address.

Note: Even if someone appears to be open about their trans status, it must always be their decision about who to share this information with. Revealing someone is trans could place them at risk of discrimination and violate their right to privacy - this can lead to disciplinary action and may be an offence under the Gender Recognition Act 2004 that carries a potential fine.

8.b Practical Consideration and Functions

If a trans member of staff is working in a gender specific role, for example a female working with female service users, consideration would need to be given to the implications should they transition to a male as they would no longer be able to fulfil the gender specific requirement for the role. The Trust will work collaboratively with the Trans person to, either:

- adapt the duties of the post to enable the individual to continue working or
- redeploy the person to a suitable alternative post.

Redeployment will be managed and the person supported in the same way as any other member of staff undergoing redeployment.

b.1 Relocation, remaining at Same Location or Redeployment

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Some employees may prefer to stay within the work environment in which they have made friends and where they feel supported.

In very rare cases, a trans person may feel it is no longer tenable for them to continue to work in the same area/department and that to continue to do so may have a detrimental effect on their health and wellbeing and may request to be redeployed or relocated during the transition period and beyond. This may not always be appropriate or feasible and any decision should always be made in consultation with the individual. The individual will be supported and the agreements reached in the same way as any other member of staff who required redeployment.

b.2 **Communication with Colleagues**

A plan for support both during and after the transition will be needed to address such questions as what information will be provided for colleagues.

Working with the trans person and with their consent it should be agreed what is said (if anything), how the information is given, if they will be present and the timing.

It is never appropriate for managers and/or staff to inform anyone, (colleagues, clients and the public) that an employee has in the past undergone gender reassignment or is undergoing gender reassignment, without the individual's explicit consent. The person may not wish to tell anyone and if that is the case, this should be respected. If such an employee is in possession of a Gender Recognition Certificate (See 10c) it is unlawful to disclose their previous transgender status to anyone without their consent.

It is good practice for employers to take responsibility for informing whoever needs to know, unless the trans person would prefer to do this. If the trans individual prefers to inform people themselves, then ideally the employer/manager should be advised when the disclosure is to take place and in what detail, so that they can provide appropriate support. This could be a verbal communication at a team meeting or on a 1:1 basis, the trans person could be present or absent, it could be an electronic communication. Generally it will only be those who knew the person before the transition who will have to be informed. There will be some others who need to know for administrative processes, such as Payroll, however confidentiality should be maintained as much as possible.

Pensions and insurance – financial services organisations will have systems in place to manage data stored about trans contributors. When dealing with other agencies, care should be taken to ensure information is only shared on a "need to know" basis with those responsible for records/policies.

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Every situation is different but the communication needs to provide some general awareness-raising and also address issues specific to the individual. Colleagues need to be able to ask questions and managers must set a tone of absolute inclusion and respect. This communication will need to be practical and address important issues such as how to address the trans colleague (preferred name, correct pronoun), how to support the colleague, how to deal with questions that may come from outside the team without breaching confidentiality etc.

More specific information on Gender Identity can be found on the Trust's intranet including a video - http://nww.hacw.nhs.uk/a-z/services/equality-and-diversity/gender-identity/

When a change of gender role is taking place, it is common for trans people to take a short time off work as annual leave and return using the name appropriate to their gender. If this is the case, this period could with the permission of the trans person be used as an opportunity to brief colleagues and to ensure that managers stress the need for respect and support of the employee. Other arrangements should be made in consultation with the trans person who does not take leave.

b.3 Expected timescales and Time Off for Medical and Surgical Procedures

It would constitute unlawful discrimination if a Manager or anyone in the Trust were to treat an individual undergoing gender reassignment, who has time off, less favourably than someone who is absent for some other medical reason where it would be reasonable to allow a similar amount of time off work. It is also unlawful to dismiss an individual for reasons of impending gender reassignment treatment.

An employee who undergoes medical or surgical treatment relating to gender reassignment, will receive appropriate support for this. It will be managed through the Trust's Promoting Staff Health, Wellbeing and Attendance Policy, Annual Leave, Special Leave Policy and Flexible Working Policies. Managers should try to offer flexibility to individuals who may need to take holiday or rearrange working hours to attend additional appointments (for instance for Gender Identity Clinic appointments) outside of work.

The law recognises that someone who is undergoing medical and/or surgical procedures is likely to require (sometimes substantial) periods of time off work to undergo treatment. As far as possible, managers should discuss how much time the individual will need to undergo gender reassignment treatment. The law does not specify a minimum or maximum time that employers should allow for transitioning. As with any employee, if a trans employee is absent for a long period, ill health retirement or termination of their contract, as laid out in the Trust's Promoting Staff Health, Wellbeing and Attendance Policy, may apply.

b.4 Records and Systems

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Identify what records and systems need to be changed, when this will happen, what will happen to "old" records? This includes photographs/biographies etc. on company websites through to historical information on personal records (such as a reference to a previous period of maternity leave for a trans man). Payroll and National Insurance details may also need to be adjusted so it is essential that where other people in the Trust need to be aware, this is within an informed context

The individual should identify to their line manager the point at which their correct gender identity is formally established, so the appropriate amendments can be made to payroll/HR records and associated matters dealt with (for example, identity badges, the individual's choice of name for email, intranet address entry etc).

Those staff who are professionally registered are advised to contact their professional bodies to find out whether there are any specific requirements in terms of name changes etc. Where the trust has to keep evidence of professional status or qualifications, it should be discussed with the member of staff how this information will be retained so as not to compromise or breach disclosure of protected information. In some instances, certificates can be re-issued with the chosen name of the trans person. (An official deed poll can be obtained free of charge or statutory declaration)

b.5 **Agreeing a Procedure for Adhering to Dress Code**

It is good practice to allow flexibility regarding dress code and respect the individual's wishes to dress appropriate for their gender, this includes hair style, jewellery, make-up etc. However, the individual will be expected to dress appropriately for their local work environment and in accordance with policy for their working environment, including Health and Safety and Infection Control considerations.

b.6 **Agreeing the Point at which the Individual Will Commence Using Single Sex Facilities in their Acquired Gender.**

The trans person should be free to select facilities (eg toilets, showers, changing facilities) appropriate to their gender identity. Employers should avoid discriminating against anyone with the protected characteristic of 'gender reassignment'. If another member of staff is unhappy about this the Manager has a duty to dispel prejudice.

It is not acceptable to insist on a trans employee to use separate, unisex or disabled facilities. If a trans person chooses to use separate facilities such as a disabled toilet it must be their free and conscious choice they should not be compelled to do so, if forced this could constitute discrimination. A trans employee should be granted access to 'men only' or 'women only' according to the gender they identify with.

DRAFT

b.7 **Identifying what Managers and Colleagues Can Do to Make the Transition Easier.**

All members of staff should refer to the trans person by their preferred name and use pronouns appropriate to their gender role.

Support Mechanisms

The list below shows just some of the options available to individuals who wish to seek support within the organisation during a gender transition period. This encompasses identifying individual needs including additional diversity issues such as age, culture, disability, ethnicity, religion or sexual orientation.

Human Resources: An appointed advisor from within the Human Resources Department may be identified at an early stage to offer assistance; put in place practical changes that need to be made to an individual's post or personal file; to encourage positive working relationships between the individual and wider team members if relevant. Any qualified human resources professional should have the necessary knowledge and awareness required to deal with such personal and sensitive issues.

Occupational Health: A referral to occupational health may be considered by the individual, their manager or the human resources representative for additional help and advice concerning any counselling needs or advice regarding the medical process of the transition. Managers may also need advice regarding the needs of the individual and on how to put in place changes that may need to be made within the team or work environment.

Trust Counselling Service (NOSS) - A trans employee can seek support from the Trust's external counselling service.

9 Bullying

The Trust applies a zero-tolerance approach all forms of bullying and harassment.

Any incidents of misconduct, harassment, bullying or victimisation relating to these guidelines should be treated with the same degree of seriousness as other instances of bullying ie, quickly and in accordance with Trust's Acceptable Standards of Behaviour Policy and/or Disciplinary Procedure.

For example and specifically, the intentional and persistent use of incorrect pronouns constitutes bullying and harassment against trans people. However, accidental use of the previous name or pronouns must be responded to with appropriate consideration relevant to the situation.

DRAFT

10 Legal Framework

10.a The Equality Act 2010

Provides protection from discrimination specifically for these guidelines, Gender, Sexual Orientation and Gender Re-assignment. Trust employees can be held responsible for their actions under the Act (even if it is without the Trusts' knowledge or approval). Employees are also individually responsible for their own discriminatory actions.

In addition to Direct and Indirect discrimination, both Perceptive and Associative discrimination are unlawful, ie to discriminate or harass a person because they are perceived to be, or associated with a person, intending to undergo, are undergoing or have undergone gender reassignment.

The Trust is liable for discriminatory action of anyone acting on their behalf. However, if the Trust can demonstrate that all reasonable steps to prevent discrimination have been taken and an a member of staff chooses to discriminate contrary to the Trusts policies and guidelines they as an individual can be held to account and legal action taken.

10.b Public Sector Duties

The Equality Act 2010 requires that public bodies have due regard to eliminate discrimination, harassment, victimisation and any other conduct prohibited under the Act (including discrimination by association or perception), to advance equality of opportunity between persons who share a protected characteristic and those who do not, and to foster good relations between persons who share a protected characteristic and those who do not.

10.c The Gender Recognition Act 2004 (GRA)

This legislation allows trans people (aged over 18) to change their legal gender.

The Gender Recognition Act (GRA) 2004 provides trans people with the opportunity to obtain legal recognition in their acquired gender by being issued with a gender recognition certificate (GRC) and maintain that person's gender history as 'protected information'. Anyone with a GRC will be legally recognised (for all purposes) as their acquired gender, this means holders of a GRC are given specific protection in law.

Treating a person's gender history as protected information means that if an employer or employee acquires information in the course of official duties, it is a criminal offence to disclose it without the consent of the trans person and is liable to criminal proceedings. It is not an offence, however, to disclose 'protected information' if the person cannot be identified or if the individual gives their consent.

DRAFT

Following a successful application to the Gender Recognition Panel, a trans person will be recognised as being a person of their acquired gender with all the legal implications which flow from this. The Act gives trans people the right to obtain a new birth certificate, affording them recognition of their acquired gender in law for all purposes and important measures to protect privacy

However, whether or not a person has a Gender Recognition Certificate (GRC) should have no bearing on their employment or employment protections, apart from providing an extra layer of privacy. Employers should treat people in accordance with their gender identity, whether or not they have a GRC and should not ask trans staff if they have one. Employment rights do not depend on whether a person has a GRC. Employers should not ask for a person's GRC and it should never be a pre-condition for transitioning at work.

The Act makes it a criminal offence for a person who has acquired protected information (information which relates to a person's application for a GRC or information which identifies a person with a GRC as transgender) in an official capacity (such as through a recruiting process) to disclose the information to any other person. The offence does not apply if the individual has agreed to the disclosure of such information or in certain prescribed circumstances (such as disclosure being for the purpose of preventing or investigating crime). Section 22 of the GRA sets out the circumstances under which such information may be disclosed lawfully.

Not all trans people apply for a GRC.

10.d Exceptions

Very rarely, there may be instances where there is an occupational requirement that a role undertaken by someone of a particular gender. This is called a Genuine Occupational Qualification. In order to claim this, the employer must show that applying the requirement is a proportionate means of achieving a legitimate aim.

There are also some limited temporary exceptions which apply during the process of gender reassignment only, for example, if a post requires the holder to provide vulnerable individuals with personal services, and the employer reasonably believes those services cannot be effectively provided by someone undergoing gender reassignment. This exception will apply only in very rare circumstances.

10.e Other legislation

The wide range of other legislative provision which relates to gender identity includes:

- Pensions Act 1995

DRAFT

- Employment Rights Act 1996
- Protection from Harassment Act 1997
- Human Rights Act 1998
- Data Protection Act 1998
- Civil Partnership Act 2004
- Marriage (Same Sex Couples) Act 2013

11 Implementation and Monitoring

These guidelines will be **implemented** through the following channels:

These guidelines will be available on the Trust's intra and internet. The guidelines will be disseminated through the management structure within the Trust.

Clear communication will be sent to all managers and staff publicising the existence of the guidelines (eg Team Brief, The Chief Executive Weekly update, and other communication networks)

The Guidelines will be sent to all Recruitments and Selection Panel Leads to work in conjunction with existing policies and procedures.

Information will be included in:
- Trust Induction
- Leadership Development Programmes

This guidance will be reviewed by the Trust's Inclusion Steering Group. Feedback will be reported to the Workforce Committee which then results in Trust Board approval.

These guidelines will be **monitored to ensure compliance and effectiveness** through the following channels:

- Individual managers reporting compliance
- LGBT+ Staff Network
- Inclusion Steering Group
- Workforce Committee who report to the Board
- Trust grievance procedure
- Complaints
- Staff side reporting

Monitoring will be carried out through the progression of the EDS2 action plan which is the working document that ensures the commitments in this guidance successfully completed.

The guidance will be fully reviewed in three years or earlier if indicated from the

DRAFT

result of monitoring and review, legislative changes, a national policy instruction (i.e. NHS England or Department of Health) or a Trust decision.

12 **Associated documentation**

This policy should be read in association with other Trust policies and procedures including:

- Acceptable Standards of Behaviour Policy
- Disciplinary Policy and Procedure
- Flexible Working Policy
- Grievance Procedure
- Managing Concerns with Performance Policy
- Recruitment and Selection Guidelines
- Retirement Policy
- Promoting Staff Health, Wellbeing and Attendance Policy
- Whistle blowing (Public Interest Disclosure) Policy
- Annual Leave and Special Leave Policy

NB This list is not exhaustive, as equality and inclusion is an integral part of everything we do as a Trust.

DRAFT

Appendix 1 - Definitions and commonly used terms regarding Trans people

Terms and language regarding trans people and trans issues are evolving rapidly and many terms may mean different things to different people. The definitions given here are common, but not universal, understandings of these terms.

Word	Description
Acquired gender [1♦]	The law uses the phrase 'acquired gender' to refer to the gender in which a trans person lives and presents to the world. This is not the gender that they were assigned at birth, but it is the gender in which they should be treated.
Agender	Someone who does not identify with any gender
Cisgender or Cis[2*]	Someone whose gender identity is the same as the sex they were assigned at birth. Non-trans is also used by some people.
Cross-dresser	Someone who wears the clothes usually expected to be worn by someone of the 'opposite' gender. Other terms include 'transvestite' (now becoming a dated term and disliked by some) and 'dual role'. A cross-dresser is unlikely to have a full-time identity as a member of their cross-dressed gender and typically does not seek medical intervention.♦ The expression "drag queen" is different, meaning a man who dresses "as a woman" for purposes of entertainment.
Gender*	Often expressed in terms of masculinity and femininity, gender is largely culturally determined and is assumed from the sex assigned at birth.
Gender binary♦	A binary system allows only two things or states – for example, on/off. In terms of gender, it refers to the either/or categories of male/female that do not allow for, or recognise, other experiences of gender.
Gender dysphoria*	Used to describe when a person experiences discomfort or distress because there is a mismatch between their sex assigned at birth and their gender identity. This is also the clinical diagnosis for someone who doesn't feel comfortable with the sex they were assigned at birth.
Gender expression*	How a person chooses to outwardly express their gender, within the context of societal expectations of gender. A person who does not confirm to societal expectations of gender may not, however, identify as trans
Gender identity*	A person's innate sense of their own gender, whether male, female or something else (see non-binary below), which may or may not correspond to the sex assigned at birth
Gender Re-assignment	The process of changing or transitioning from one gender to another.

[1♦] The recruitment and retention of transgender staff Guidance for employers November 2015
[2*] Stonewall – Glossary of Terms

DRAFT

	Another way of describing a person's transition. To undergo gender reassignment usually means to undergo some sort of medical intervention, but it can also mean changing names, pronouns, dressing differently and living in their self-identified gender.[3*] Gender reassignment is a characteristic that is protected by the Equality Act 2010, and it is further interpreted in the Equality Act 2010 approved code of practice. It is a term of much contention and is one that Stonewall's Trans Advisory Group feels should be reviewed*
Gender Recognition Certificate (GRC)*	This enables trans people to be legally recognised in their affirmed gender and to be issued with a new birth certificate. Not all trans people will apply for a GRC and you currently have to be over 18 to apply. You do not need a GRC to change your gender markers at work or to legally change your gender on other documents such as your passport.
Gender reassignment surgery GLAAD Media Reference Guide - Transgender	Also called Gender Confirmation Surgery (GCS). Refers to doctor-supervised surgical interventions, and is only one small part of transition. Avoid the phrase "sex change operation." Do not refer to someone as being "pre-op" or "post-op." Not all transgender people choose to, or can afford to, undergo medical surgeries.
Gender Recognition Act	This legislation allows trans people (aged over 18) to change their legal gender. The Gender Recognition Act (GRA) 2004 provides trans people with the opportunity to obtain legal recognition in their acquired gender by being issued with a gender recognition certificate (GRC) and maintain that person's gender history as 'protected information'. Anyone with a GRC will be legally recognised (for all purposes) as their acquired gender, this means holders of a GRC are given specific protection in law.
Gender Variance Gender Fluid	A desire to live and be accepted as a member of the opposite gender often accompanied by a sense of discomfort with, or inappropriateness of, one's anatomic sex, and a wish to make one's body as congruent as possible with one's preferred sex
Intersex People/ Intersexed[4*]	A term used to describe a person who may have the biological attributes of both sexes or whose biological attributes do not fit with societal assumptions about what constitutes male or female. Intersex people may identify as male, female or non-binary.

[3*] Stonewall – Glossary of Terms
[4]

DRAFT

Mis-gendering[5♦]	You mis-gender someone when you refer to them using a word, especially a pronoun or a form of address, that does not correctly reflect the gender with which they identify.
Non-binary*	An umbrella term for people whose gender identity doesn't sit comfortably with 'man' or 'woman'. Non-binary identities are varied and can include people who identify with some aspects of binary identities, while others reject them entirely. It is good practice to ask what pronouns someone prefers which may include they/them rather than s/he his/hers. Non-binary people may or may not identify as transgender.
Pansexuality	Pansexuality is sexual attraction, sexual desire, romantic love, or emotional attraction towards persons of all gender identities and biological sexes. Pansexuals have the capability of attraction to others regardless of their gender identity or biological sex.
Passing*	If someone is regarded, at a glance, to be a cisgender man or cisgender woman.
Real life experience (RLE)♦	Sometimes called the Real-Life Test (RLT), this is a period of time in which trans individuals live full-time in their preferred gender role. The purpose of the RLE is to confirm that the person can function in their preferred gender successfully in society, as well as to confirm that they are sure they want to live in their preferred gender for the rest of their life.
Sex*	Assigned to a person on the basis of primary sex characteristics (genitalia) and reproductive functions. Sometimes the terms 'sex' and 'gender' are interchanged to mean 'male' or 'female'.
Sexual Orientation	Describes an individual's enduring physical, romantic, emotional and/or spiritual attraction to another person. Trans people may identify as any sexuality eg heterosexual, lesbian, gay, bisexual, asexual and so on
Stealth	When a trans person does not disclose they are trans in public
Transgender or Trans person	An umbrella term to describe people whose gender is not the same as, or does not sit comfortably with, the sex they were assigned at birth.[6*] Trans people may describe themselves using one or more of a wide variety of terms, including (but not limited to) transgender, transsexual, gender-queer (GQ), gender-fluid, non-binary, gender-variant, crossdresser, genderless, agender, nongender, third gender, two-spirit, bi-gender, trans man, trans woman, trans masculine, trans feminine and neutrois.
Transitioning or Transition	The steps a trans person may take to live in the gender with which they identify. Each person's transition will involve different things. For some this involves medical intervention, such as hormone

[5♦] The recruitment and retention of transgender staff Guidance for employers November 2015
[6*] Stonewall – Glossary of Terms

DRAFT

(Socially and/or medically)	therapy and surgeries, but not all trans people want or are able to have this.* Transitioning also might involve things such as telling friends and family, dressing differently and changing official documents.* The journey from your assigned gender to the one you know yourself to be. This may refer to social transition (changing name, clothes etc), medical transition (hormones and/or surgery) or both.[7♦] Transition includes some or all of the following cultural, legal and medical adjustments; telling one's family, friends, and/or co-workers; changing one's name and/or sex on legal documents; hormone therapy; and possibly (though not always) some form of surgical alteration
Transgender man – FtM[8*]	A term used to describe someone who is assigned female at birth but identifies and lives as a man. This may be shortened to trans man, or FtM, an abbreviation for female-to-male.
Transgender female – MtF*	A term used to describe someone who is assigned male at birth but identifies and lives as a woman. This may be shortened to trans woman, or MTF, an abbreviation for male-to-female
Transphobia*	The fear or dislike of someone based on the fact they are trans, including the denial/refusal to accept their gender identity.
Transsexual	This was used in the past as a more medical term (similarly to homosexual) to refer to someone whose gender is not the same as, or does not sit comfortably with, the sex they were assigned at birth. This term is still used by some although many people prefer the term trans or transgender.[9*] This term is most closely associated with the legally protected characteristic of 'gender reassignment'. A transsexual person may be a person assigned female at birth who has transitioned or is transitioning to live as a man, or a person assigned male at birth who has transitioned or is transitioning to live as a woman. The law does not require a person to undergo a medical procedure to be recognised as a trans person. Once a transsexual person has acquired a GRC, they should generally be treated entirely as in their acquired gender.[10♦]
Transvestite	A term used to describe a person who dresses in the clothing of the opposite sex. Generally, transvestites do not wish to change their body.

[7♦] The recruitment and retention of transgender staff Guidance for employers November 2015
[8*] Stonewall – Glossary of Terms
[9]
[10]

DRAFT

Appendix 2 - **Useful Sources of Information and Advice**

www.inclusiveemployers.co.uk The UK's leading inclusion and diversity experts, working with employers to create inclusive workplaces.

www.scottishtrans.org The Scottish Transgender Alliance works to improve gender identity and gender reassignment equality, rights and inclusion in Scotland.

http://genderedintelligence.co.uk/ Gendered Intelligence work predominantly with the transgender community and those who impact on transgender lives. They particularly specialise in supporting young transgender people aged 11-25.

www.gires.org.uk Gender Identity Research and Education Society provides information for trans people, their families and the professionals who care for them.

www.depend.org.uk Offering free, confidential advice, information and support to all family members, spouses, partners and friends of transsexual people in the UK.
www.gendertrust.org.uk The Gender Trust supports all those affected by gender identity issues.

www.clareproject.org.uk The Clare Project is a self-supporting group based in Brighton and Hove open to anyone wishing to explore issues around gender identity.

http://ntpola.com/ The National Trans Police Association exists primarily to provide support to serving and retired Police Officers, Police Staff and Special Constables with any gender identity issue.

www.gender-matters.org.uk Wolverhampton based, Gender Matters provides a comprehensive programme of practical support, counselling, advice and information.

www.equalityhumanrights.com The Equality and Human Rights Commission seeks to identify and tackle areas where there is still unfair discrimination or where human rights are not being respected and to act as a catalyst for change. The EHRC also provide statutory guidance on the Equality Act for employers, which can be found here:
http://www.equalityhumanrights.com/private-and-public-sector-guidance

www.blgbt.org Supports the LGBT community in Birmingham.

www.northernconcord.org.uk Northern Concord is a Manchester based transvestite, transgendered and transsexual support and social group.

www.translondon.org.uk Trans London is a discussion/support group for all members of the trans community, whatever their gender identity.

www.gayadvicedarlington.co.uk Offers free, confidential support, advice and drop in sessions to trans people at a full time LGBT centre. 30

www.transgenderwales.bravepages.com Supports transgendered people in Wales.
www.transgenderni.com Supports transgendered people in Northern Ireland.

DRAFT

Government Equalities Office (GEO)
GEO is responsible for equality strategy and legislation across government.
www.gov.uk/geo

Department for Business, Innovation and Skills (BIS)
BIS is the department for economic growth. The department invests in skills and education to promote trade, boost innovation and help people to start and grow a business. BIS also protects consumers and reduces the impact of regulation.
www.gov.uk/bis

Equality and Advisory Support Service (EASS)
EASS has a helpline that advises and assists individuals on issues relating to equality and human rights, across England, Scotland and Wales.
www.equalityadvisoryservice.com/

British Chambers of Commerce (BCC)
BCC is the national voice of local business and serves business members across the UK. The BCC is a voice for the interests of business, delivers services that help business grow, and is the private sector source of advice and support for international trade.
http://www.britishchambers.org.uk/

NHS Website
The NHS website (www.nhs.uk) is the UK's biggest health website with more than 43 million visits per month. A world-leading health information service putting people at the heart of everything. The website is funded by the Department of Health and Social Care (DHSC). The content, data and services on the website are commissioned by NHS England and delivered by NHS Digital for people in England.
https://www.nhs.uk/conditions/gender-dysphoria/

DRAFT

Equality Impact Analysis Screening Form

Title of Activity	**Transgender Staff - Guidelines**		
Date form completed	*09/07/2018*	Name of lead for this activity	*Patrick McCloskey*

Analysis undertaken by:			
Name(s)	Job role	Department	Contact email
Patrick McCloskey	*OD & Inclusion Practitioner*	*Organisational Development*	*Patrick.mccloskey@nhs.net*
Abby Oates	*OD & Inclusion Facilitator*	*Organisational Development*	*abigailoates@nhs.net*
Kate Leese			
HR			
Staff Member			
Staff Member			
Staff Side			

What is the aim or objective of this activity?	*Provide Guidelines for the Trust (Senior Managers, Managers and Staff), for appointing Transgender Staff from recruitment and selection to supporting transgender staff during their employment in the Trust*
Who will this activity impact on? *E.g. staff, patients, carers, visitors etc…*	*Staff and indirectly patients and service users.*

Potential impacts on different equality groups:

Equality Group	Potential for **positive** impact	Neutral impact	Potential for **negative** impact	Please provide details of **how** you believe there is a potential positive, negative or neutral impact (and what evidence you have gathered)
Age		❑ ✔		*These guidelines apply to all staff of working age both full and part-time including students; training contracts, honorary contract etc.,*
Disability			❑✔	*If a member of staff where to have a disability and be trans, individual support will be provided to accommodate the needs of the person in terms of their disability while providing the appropriate support for their trans status. If for example documentation needed to be in Easy Read or another format this will be done.*
Gender Reassignment	❑✔			*The guidelines are specific for staff who are, transitioning or transgender to ensure they have the same opportunity to be employed and receive the same employment rights as non-trans staff. That manager and staff know how to provide the best support and working environment by working with the individual's needs and requirements.*

Equality Group	Potential for **positive** impact	Neutral impact	Potential for **negative** impact	Please provide details of **how** you believe there is a potential positive, negative or neutral impact (and what evidence you have gathered)
Marriage & civil partnerships		❑ ✔		*The guidelines provide the same level of support for the marital status of the trans person as a non-trans person, irrespective of their marital status*
Pregnancy & maternity		❑ ✔		*If a trans person were pregnant on or maternity leave the pregnancy and maternity policy would apply in the same way as a cisgender member of staff*
Race		❑ ✔		*The guidelines are specific for transgender staff that includes the same protection afforded by the Equality Act in relation to Race. The cultural identity of the member of staff would be respected in the same way as a non-trans person but consideration given to any customs and practices. Equally, if the guidelines needed to be translated into another language to accommodate a member of staff whose first language is not English.*
Religion & belief		❑ ✔		*A member of staff's religion/belief or right not to believe has no negative impact on them as a result of these guidelines*
Sex		❑ ✔		*As the guidelines centres on transgender, it accepts that the workplace is no longer binary in terms of sex and the definitions of transgender incorporates non-binary, gender fluid and other identities.*
Sexual Orientation		❑ ✔		*There is no know negative impact of staff because of their sexual orientation as either a trans person or cisgender.*
Additional Impacts *(What other groups might this activity impact on? e.g. carers, homeless, travelling communities etc.)*	❑	❑	❑	

Level of impact

If a potential negative or disproportionate impact has been identified from this activity:

	Yes	No

Could this impact be considered direct or indirect discrimination?		*No*
If yes, how will you address this?		

If the impact could be discriminatory, please contact the Inclusion Team to discuss actions

	High	Medium	Low
What level do you consider the potential negative impact to be?			*Low*

If the negative impact is high, a full equality impact analysis will be required

Action Plan

How could you minimise or remove any negative impact identified, even if this is rated low?
See section for Disability. Any potential negative impact can be omitted with reasonable adjustments and consideration.
How will you monitor this impact or planned actions?
Feedback from staff should there be a negative impact and the Trust's response to resolve the potential impact.
Future Review Date:

Once completed, please attach this form to the relevant proposal, strategy, policy etc and submit for approval via normal channels

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